

6.	<u>30-2022-01292807-CU-CO-CJC</u> Fang vs. Wang	Before the Court is a Motion for Reconsideration submitted by Defendant/Cross Complainant Guoqing Wang ("Defendant"), pursuant to California Code of Civil Procedure Sections 1008 and 2025.420. ROA 341. Defendant requests that the Court vacate, modify, or stay the Court's May 19, 2026, order denying Defendant's motion for protective order and ordering Defendant to appear for deposition. <i>See</i> ROA 333. Defendant requests reconsideration on the grounds that new facts and evidence show that Defendant is currently incarcerated in China and unavailable for deposition. ROA 341, p.5. Plaintiffs/Cross Defendants Yili Fang and Dongying Pan (collectively, "Defendants") request that the Court deny Defendant's motion. ROA 345, p.6. I. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within [ten] 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." Cal. Civ. Proc. Code § 1008(a). Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were not known or available at the time of the original application. <i>See Garcia v. Hejmadi</i>, 58 Cal. App. 4th 674, 690(1997). Courts will not consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the original application in controversy. <i>See Id.</i> (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at
----	--	--

		the time of the original application, without offering any justification for its failure to present them earlier). Here, on April 20, 2026, Defendant moved for a protective order regarding Plaintiff's notice of deposition and document request. ROA 325. Defendant sought the protective order on the grounds that Defendant was detained in China and was not free to travel to appear for deposition. ROA 325, ¶ IV. Defendant's sworn declaration in support of his motion for a protective order presented testimony that supported these facts. ROA 325, Decl. of Helen Quan, Esq., ¶¶ 6-9. On May 19, 2026, during an Informal Discovery Conference facilitated by the Court, the parties submitted on the Court's tentative ruling denying Defendant's motion for a protective order and ordering Defendant to appear for deposition within thirty (30) days (June 18, 2026). ROA 333. In support of the present motion, Defendant presents exhibits that support Defendant's claim of unavailability due to incarceration in China. ROA 341, Exh. A. While the exhibits may not have been provided with Defendant's application, the essential elements of Defendant's incarceration were included in the original declarations in support of Defendant's motion for a protective order and were duly considered by the Court. Thus, the Court finds that Defendant's application for reconsideration presents no new or different facts, circumstances, or law that the Court did not consider in making its tentative ruling, to which Defendant already submitted. <i>See</i> ROA 333. Accordingly, Defendant's Motion for Reconsideration is DENIED. Clerk shall give notice.
--	--	---

7.	30-2023-01330408-CU-IC-CJC	
----	--	--